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Resolving Disagreement as Virtuous Arguers

Chapter outline

In this chapter, we'll begin by thinking about what kind of critical thinkers we want to be. We will then look at how, as good critical thinkers, we can engage in a process of arguing with other people.

The characteristics of a good arguer

Think about some of the best discussions you have ever had—the ones where you didn't begin by agreeing with the person you were talking to, but through talking were able to come to an understanding or agreement. What made those conversations enjoyable, or at least better than others that didn't go so well? And in particular, what was it about the person you were arguing with that was admirable, and that contributed to the discussion going well?

When we start to think about the qualities of a person and the caliber of their character, we are entering the realm of virtues. Another common feature of virtues is that they tend to strike a balance between more extreme options – one that is defective, or is too little, and one that is excessive, or is too much – referred to as 'vices'. The thinking is that while vices ought to be avoided, virtues should be habituated, that is, practiced repeatedly until they become a habit. Most of the time when we think about exemplary people, those people tend to embody specific virtues. For example, if we think about generosity, we could imagine someone who is not generous at all, who is never willing to share their time or resources with others. We might call that person stingy, greedy, or uncharitable (all deficiency vices). On the other hand, however, someone might be thought to be too generous – to give away too much of their time or resources, causing pain to themselves, preventing their ability to give in the long term, or disrupting the lives of their family members. At best, these people may be thought to be extravagant (an excessive vice), but more generally, they may be considered foolish or imprudent. Thus, being generous is a middle ground between not giving enough and giving too much.

This week, one of our goals is to start thinking about what kind of virtues a good arguer maintains. In other words, we will ask "if we want to be the best kinds of arguers and critical thinkers, what characteristics should we embody?" Doing so allows us to spot some characteristics/virtues that we would want to see in a good arguer and critical thinker. And as we will see, the three intellectual/argumentative virtues we will consider all strike a mean between two extremes as well. Finally, while these virtues can be characterized separately, they function best when they work together, and they in fact often do so. Thus, while we can separate them here for clarity, in practice they are often blended. In other words, they are not

mutually exclusive – excelling in one does not prevent you from being able to excel in the others as well.

Intellectual Humility

The first intellectual virtue we will consider is intellectual humility. Humility in general refers to an awareness of one's own limits and a willingness to admit them. *Intellectual* humility refers to an individual's recognition of the limits of their knowledge and abilities. A person demonstrating intellectual humility maintains an awareness that, on any given issue, they could be wrong or unknowledgeable. This kind of humility falls between two vices. On the deficient side, a person may have no faith (or too little faith) in their own knowledge. They may think they know nothing and thus be in a near constant state of trying to think or decide. On the other extreme, someone may think they already know everything, or think they know far more than is plausible. In addition to being mistaken about the scale of what they know, they may also hold their beliefs very tightly and be unwilling to change their minds. Thus, having intellectual humility means not being so unconfident in your knowledge that you remain uncertain of everything you know or display no confidence in things you should be sure about, and it also means recognizing that some of the things you think are certain may be incorrect, or that there may blind spots in your knowledge that other people can fill in. Intellectual humility means recognizing that we are all *fallible* – that is, capable of making mistakes.

When people demonstrate their intellectual humility, it often shows up in what is commonly known as open-mindedness. We can think of open-mindedness in two related ways. In one way it means being willing to think outside the box – to stretch our minds in ways we have not before. Relatedly, it also means being willing to consider and potentially accept ideas we may not normally be willing to, or that seem at first to go against our previously held beliefs or values. As a part of intellectual humility, being open-minded means that we are not so open that we quickly change our minds any time we are challenged (that would mean being overly open-minded – an excess), but it also means we are not so overconfident in ourselves that we are never willing to be rationally persuaded (being closed-minded – a deficiency). It means being willing to change our minds when there is good reason to do so and doing so when there is good reason to.

Finally, while intellectual humility is most often about looking inward, this virtue also has an outward-looking dimension in that the recognition of our own fallibility can help us understand how others could be similarly fallible. And when we recognize the fallibility of others, it may help us empathize with them more than we could otherwise.

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Intellectual Empathy

Intellectual empathy refers to our ability to recognize and appreciate the lived experience of the people we are interacting with, and to see how these experiences might inform their reasoning and argumentation. As a mean between extremes, intellectual empathy falls between being so empathetic to a person's position and point of view that you think there is no way they could be mistaken (gullibility) and being so closed off from it that you think their history and experiences are completely unimportant to the beliefs they hold or the reasoning going into their decision-making (disregard).

Someone who practices intellectual empathy aims at genuine understanding. Think back to that person you thought of at the beginning of this reading, the person who you didn't start out agreeing with but with whom you had an excellent discussion. The odds are that that person displayed at least some level of intellectual empathy toward you and you to them. Most often, if the person you are engaged with shows no understanding of where you are coming from, or no appreciation of you as someone who is knowledgeable (even if you are mistaken in a particular instance), you will not want to engage with them for very long. Thus, displaying genuine empathy and understanding can be thought of as a sign of respect.

But intellectual empathy is also important for our own humility. In many cases, the discussions we have and the things we argue about are not cases of right or wrong, correct or incorrect, but matters of degree. And if we are open-minded, being empathetic to another person's perspective and experience may help us see that the things we have been thinking about in a particular way can also be thought of in another way, that certain features require more or less emphasis, or that we might have missed something altogether.

Thus, intellectual empathy has an inward and outward looking dimension as well. It requires us to look inward and think about where we come from and to start to identify things we hold as unquestioned truths. Once we have done this, we can then look outward and see how others, who have different lived experiences, may see things differently and may hold different unquestioned truths.

Developing our intellectual humility is thus not only good for improving the quality of our discussions, so that we can feel and be understood, but it is also good for getting us to better decisions in that it can help us in our efforts to be open-minded and to change our minds when there is good reason to do so.

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Intellectual Courage

Recognizing that we could be wrong, working to appreciate the lived experiences of others and appreciating how those experiences might inform their thinking, are not easy things to do and they take practice. But more than practice, they also require courage.

Intellectual courage refers to an individual's willingness to engage in reasoning or argumentation when doing so appears to carry the risk of pain or harm to the reasoner or arguer. In other words, having intellectual courage means being willing to grapple with difficult concepts and ask difficult questions. Understood in this way, intellectual courage falls between the deficiency of intellectual cowardice (never pursuing truth when it is scary to do so) and intellectual rashness (insisting on reasoning or argumentation when it may be inappropriate or foolish to do so).

Thus, displaying intellectual courage means engaging in reasoning or argumentation when it may be less scary not to, or when ignorance may be more comfortable. But it also means knowing when not to do so, for example when doing so may be contextually inappropriate. We can think, for example, about having a discussion in which we become aware of the immoral or harmful conduct of a close colleague. Imagine, for instance, that you notice supplies have started disappearing from the office. As you investigate, you begin to suspect that one of your employees is stealing the supplies. But you only have four employees and have a great deal of respect for all of them. In such a case, it may feel more comfortable to pretend nothing is happening and not follow your reasoning. It would take courage to follow it through.[1] Alternately, we can think of an instance where a colleague has just suffered what is, to them, a big and unexpected loss of a client. At that moment, it may be better to console them rather than show them the errors of their thinking that you think led to their client's departure. Intellectual courage means engaging in reasoning *when it is the right time to do so.*

Intellectual courage can also take a less personal form. Think, for example, of the reasoning business leaders go through when making sense of their environmental impact and working toward improvement. From one perspective, it may seem easier and less painful to pretend that the business does not pollute, or that they could not do better in that regard. It may also seem at first that taking corrective measures would be time-consuming and expensive. It takes intellectual courage to have discussions about both self and business improvement.

[1] We can also see the importance of the role of intellectual empathy here. Let's say you figure out who is taking the office supplies, and during that discussion realize that you have not been paying your employees enough, increasing the pressure on them to steal. This doesn't mean that you will approve of their theft, but empathy will help you understand the situation more fully.

Thus, like humility and empathy, intellectual courage also has both an inward and outward looking dimension. It means reasoning when doing so may be uncomfortable for us, but also when doing so may be uncomfortable for others.

Resolving Disagreements Through Arguing

Now that we know some of the best characteristic we can aim at as critical thinkers, we can start to think about how two people who both display these virtues might resolve a difference of opinion. After all, humble, courageous, open-minded people disagree all the time. But most often, through a process of argumentation one or more people may come to change their minds and move past the disagreement.

A "Critical Discussion":[2]

One famous model of argumentation originating from The Netherlands is called the "Pragma-dialectical model". According to pragma-dialecticians, the ideal way to resolve a difference of opinion is through what they call a "critical discussion", which proceeds through 4 stages

1. The first stage is called the "confrontation stage". This is the point where the participants establish that they have a difference of opinion. Sometimes that means one person simply doubts what another claims, for example, I might doubt your claim that the share price of company Z will continue to rise. In other cases, the person might go beyond doubt and hold a conflicting opinion – for example, that the share price of company Z will drop. While, ideally, participants would be explicit about the topic of their disagreement, in reality is not always immediately clear. Sometimes people don't have the right words to express what they are thinking and sometimes they may doubt something someone else says, but can't exactly figure out why. The important point here is that in any case, the doubt or disagreement has to be brought forward in some way for there to be argumentation at all.

2. The second stage is called the opening stage. During the opening stage, the participants agree to try to try to resolve their disagreement. Ideally, this would mean that they identify themselves with differing argumentative roles. In the most straightforward cases these can be thought of as protagonist and antagonist. The protagonist is the one who believes a claim or position and the antagonist is the one who doubts or contradicts it. Thus, when two participants hold conflicting beliefs, they both play both roles. Imagine Jacque and Elaine differ in their beliefs regarding whether we are heading into economic growth or recession. Jacque is

[2] The Pragma-dialectical theory of argumentation characterizes these stages and other interesting aspects of resolving a difference of opinion on the merits more fully. For future reading, see Van Eemeren, F. H., & Henkemans, A. F. S. (2016). *Argumentation: Analysis and evaluation*. Taylor & Francis.

the protagonist for "We are heading toward economic growth" and is the antagonist for "We are heading toward an economic recession", while Elaine takes on the opposite roles.

The other main feature of the opening stage is agreement on ground rules for the discussion. They participants may agree, for example, to take alternating turns speaking, or to set a time limit for their contributions, say 2 minutes each turn. They may also agree that certain substantive considerations are off limits, such as appeals to certain authority figures who they agree have been discredited, or their differing religious traditions, which while they could bear some relevance are agreed not to be essential and potentially more distracting from the resolution than helpful for it. In technical terms, the opening stage is where the participants agree on the procedural starting points (regarding who takes which roles, how the discussion should proceed) and material starting points (regarding which positions each participant holds, which considerations are within and out of the limits of the discussion).

3. The third stage is referred to as the argumentation stage. At this stage, the participants follow the rules they agreed to in stage two so that the protagonist can support and defend his or her standpoint against the criticisms and objections of the antagonist. Each party thus presents arguments to counter the other's position or objections. Thus, this is the stage where you will find many of the inductive and deductive argument types learned earlier in this course.

Importantly, this stage includes a combination of argument creation/presentation and evaluation. If, after a protagonist provides support for their position (creates and presents an argument), the antagonist expresses a reason for why it is unsatisfactory (evaluates the protagonists argument), then the protagonist may provide another or new supporting arguments. Thus, the relevance and acceptability of each argument is subject to an initial evaluation as it is presented. However, while each receives a preliminary evaluation, the overall evaluation of the argumentation happens in the fourth stage.

4. In the fourth stage, the concluding stage, the parties assess the extent to which the disagreement has been resolved and in whose favour. Theoretically the disagreement is only truly resolved if there is agreement on both the standpoint under consideration and the arguments presented for it. But in practice, this kind of thorough agreement may not be necessary. It might be enough that the two parties agree on the conclusion, even if they differ slightly as to *why* that's the right conclusion.

As was mentioned earlier, these four stages are considered *ideal,* which means that although people don't actually always (or even usually!) follow them perfectly when they try to settle a disagreement rationally, they do provide us with a gold standard to aim toward.

There are many reasons why people may not follow these stages exactly in this way in practice. For one, discussions are seldom so straightforward, and as mentioned earlier, people may not

know exactly how to put their thoughts into clear formulations that can be debated in this way. But beyond these limitations, the stages also often overlap. For example, during the argumentation stage, someone may do or say something that immediately seems unacceptable, in which case the discussion would be paused and a new rule put in place, moving the participants temporarily back to stage 1. Nevertheless, having this ideal theory in mind allows us to spot places where an instance of argumentation may have derailed or point to conduct that helped us feel we had a really good discussion.

Other processes for resolving disagreement:

Other process for resolving a disagreement can be found in more specific contexts. In each of these contexts you will still find the basic premise and conclusion structures we have already covered, but the process may be more defined and the roles of the participations may be more structured to help achieve a specific goal.

Legal Action: For example, when two people disagree about whether a contract has been fulfilled appropriately, they may end up in a court of law. Similarly, if a person who has been convicted of a crime disagrees with the assertion that they are guilty. In these cases, the parties in disagreement present their arguments to a third party (a judge or jury), who after considering and weighing off the evidence (premises), comes to a conclusion.

Mediation: Outside of the courtroom, individuals or organizations may also participate in a process of mediation, which involves a neutral third party who is responsible for guiding the parties to a resolution rather than deciding one. As a responsible guide, a mediator will pay special attention to the confrontation and opening stages of the resolution of the difference of opinion, in efforts to get the parties starting their discussion in a productive way and prevent the disruption or stagnation of the discussion from occurring because of hostility between the disagreeing parties.

Negotiation: A disagreement may sometimes also be settled through negotiation. This process may be similar to a mediation, but without the use of a third party to guide the process. In a negotiation, each party aims to preserve as much of their interests as possible while compromising with the other(s) in order to reach an agreement. This process thus inherently involves a process of compromise that may or may not appear in the other methods for resolving a disagreement. Further, negotiations may be structured to greater and lesser degrees. For example, you may have a relatively unstructured negotiation with a friend who wants to sell you their old record collection, whereas negotiations between employee unions and employers may be highly structured, with the process laid out in a written collective agreement.

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Conclusion

In this chapter we looked at ideal characteristics of good critical thinkers and arguers and some of the most well-known procedures for resolving a disagreement in a rational way. Imagine the power of putting a pair of virtuous arguers into such clear processes for settling disagreements! It sure would make the world a better place. And while we are unfortunately fallible and seldom live up to such high standards, doing our best to get there will mean even when we fall a little short, we will have done better than if we had not tried to get there at all.